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RECORDED 09/14/2018 15:38:03
HARVEY RUVIN, CLERK OF COURT
MIAMI-DADE COUNTY, FLORIDA

DEVELOPMENT AGREEMENT

Between

ALTA SUNSET, LLC. , a
Florida limited liability company

and

CITY OF SOUTH MIAMI, a
Florida municipal corporation

DATED AS OF September 13 2018

DEVELOPMENT AGREEMENT

THIS DEVELOPMENT AGREEMENT ("Agreement") is executed as of this 13th day of September, 2018, by and between the **CITY OF SOUTH MIAMI**, a Florida municipal corporation ("City") and, **Alta Sunset, LLC**, a Florida limited liability company ("Developer").

RECITALS:

A. Developer has entered into a long-term ground lease for the Property more particularly described in **Exhibit A** attached hereto (the "Property").

B. Developer has applied to the City Commission for approval of a Special Exception to allow a project within the TODD (MU-5) of more than 40,000 square feet, consisting of 203 residential units, 2,441 square feet of commercial space and 3,678 square feet of restaurant at the Property (the "Project") pursuant to Section 20-8.9 of the City's Land Development Code ("LDC").

C. The City has found that the development permitted or proposed is consistent with the local government's comprehensive plan and land development regulations;

D. Section 20-8.9 of the City's LDC requires a Development Agreement to be entered into with respect to the Property which grants certain assurances regarding the construction, operation and maintenance of the proposed Project.

E. The City and Developer desire to enter into this Agreement for the purpose of providing the terms and conditions on which the Property is to be developed.

NOW, THEREFORE, in consideration of the premises and the mutual covenants herein contained, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the City and Developer hereby mutually covenant and agree as follows:

ARTICLE I. EXHIBITS, DEFINITIONS, AND FURTHER ASSURANCES

Section 1.1 Exhibits. Attached hereto and forming a part of this Agreement are the following Exhibits¹:

<u>Exhibit A</u>	Legal Description of Property
<u>Exhibit B</u>	Special Exception Approval, City of South Miami Resolution No. 074-18-15107
<u>Exhibit C</u>	Development Schedule
<u>Exhibit D</u>	Permits required for the Project.

¹ To the extent that any exhibit is in conflict with the language and terms of the Agreement, the language and terms of the Agreement shall govern.

Section 1.2 Defined Terms. In addition to other terms defined in this Agreement, as used herein the term:

"Acceptable Operator" is defined in the Standards of Operation for each project component.

"Affiliate" or "affiliate" means with respect to any Person (i) any Person directly or indirectly controlling, controlled by or under common control with such Person (ii) any officer, director, general partner, member; manager or trustee of such Person or (iii) any Person who is an officer, director, general partner, member, manager or trustee of any Person described in clauses (i) or (ii) of this sentence. For purposes of this definition, the terms "controlling," "controlled by" or "under common control with" shall mean the possession, direct or indirect, of the power to direct or cause the direction of the management and policies of a Person or entity, whether through the ownership of voting securities, by contract or otherwise, or the power to elect at least fifty percent (50%) of the directors, managers, general partners, or persons exercising similar authority with respect to such Person. For purposes hereof the term "Person" shall mean any legal entity, (including corporations and limited liability company), any association of individuals or business entities, any trust (including business trust, real estate investment trust, common law trust, or other trust), any partnership (including general partnership, limited partnership, limited liability limited partnership, limited liability partnership), joint venture, or two or more persons or entities (or any combination thereof and the estates of any of those individuals) having a joint or common economic interest, or any individual (or estate of such individual).

"Agreement", means this Development Agreement, as the same may be modified or amended from time to time.

"Applicant", means the person who applied for a special exception approval of the Project.

"City" unless otherwise specified or required by the context, means the City of South Miami.

"City Manager" means the City Manager of the City of South Miami.

"Completion Date" means that date of substantial completion as defined by Section 20-8.9 of the LDC.

"Developer" means Alta Developers, LLC, the long term ground lessee of the Property, with express consent from Sunset-Miami Investment, Inc., a Florida corporation, the Owner of the Property.

"Developer Improvements" consists of the improvements contemplated to be constructed by Developer pursuant to the Regulatory Plans.

"Event of Default" has the meaning ascribed to it in Section 3.3.

"Lender" means any lender, and any successor, assignee, transferee or designee of such

lender, which provides financing, secured or unsecured, in connection with the Project, which shall include, without limitation, any mortgagee.

"Project" shall mean the improvements developed by Developer on the Property pursuant to the Regulatory Plans.

"Regulatory Plans" shall have meaning set forth in Section 2.1.

"Section", "Subsection", "Paragraph", "Subparagraph", "Clause", or "Subclause" followed by a number or letter means the section, subsection, paragraph, subparagraph, clause or subclause of this Agreement so designated.

Section 1.3 Approvals and Consents. Wherever in this Agreement the approval or consent of any party is required, it is understood and agreed that, except as otherwise specified, such approval or consent will not be unreasonably withheld or delayed.

Section 1.4 General Conditions

1.4.1. Any development of the property will be in substantial compliance with the documents submitted including: Letter of Intent from Ines Marrero-Priegues dated August 11, 2017; Application Book consisting of a survey prepared by Fortun, Leavy, Skiles, Inc. dated 7/27/17; Renderings dated 9/20/17 (Sheets R-1.0 through R-1.2), Site Photographs (Sheets CP-1.0 and CP-2.0); a Zoning Chart dated 8/11/17 (Sheet A-0.1) a site plan data sheet (A-1.00); Floor and Roof Plans (Sheets A-1.00 through 1.07); building elevations (Sheets A-2.01 and A-2.02); a building section drawing (Sheet A-3.01); and Planter Details (Sheet A-4.0) all signed and sealed by Roberto Behar (9-20-17); and a Tree Disposition Plan dated 10/10/17 (Sheet TD-1) and landscape plans (Sheets L-1 through L-4) dated 8/8/17 prepared by Witkin Hults Design Group; and a Traffic Impact Study and Parking Study both prepared by Richard Garcia & Associates. 1.4.2. All documents submitted with application for Special Exception are to be made part of this Agreement.

1.4.2. All documents submitted with this application are to be made part of the record.

1.4.3. Any improvements in the Public Right-of-Way shall be approved by the applicable agency (FDOT, Miami-Dade County and/or City of South Miami).

1.4.4. All impact fees shall be paid prior to issuance of building permit.

1.4.5. The Developer shall provide a letter acknowledging compliance with the applicable Level of Services requirements prior to the issuance of final permit to the property. If any concurrency approvals expire a re-review shall be required by the appropriate agency.

1.4.6. Any changes that increase densities, intensities or population shall require a new Concurrency Analysis.

1.4.7. Developer shall submit verification from Miami-Dade County that the proposed new development has been reviewed and approved for all access management considerations prior to site plan approval.

1.4.8. Flood elevations shall be reviewed and approved for consistency with FEMA

requirements and the City's National Insurance Flood Program Ordinance prior to building permit approval.

1.4.9. The Developer shall comply with applicable conditions and requirements by Miami-Dade County Public Works Department, Fire Rescue Department, Department of Regulatory and Economics Resources - DERM (DRER), Miami-Dade County Water and Sewer Department, and FDOT.

1.4.10. The Developer shall execute and record in the public records of Miami-Dade County, a Development Agreement and a Maintenance Covenant, in a form approved by the City Commission and City Attorney, which complies with the requirements of Land Development Code Section 20-8.9.

1.4.11. The Developer shall execute and record in the public records of Miami-Dade County, a restrictive covenant, in a form approved by and subject to the review and approval of the City Manager and City Attorney, which contains all commitments made and conditions imposed as part of the approval of the Applications.

Construction General Conditions

1.4.12. A Construction and Maintenance of Traffic (MOT) Plan shall be provided by the Applicant to the Public Works Departments for approval prior to start of construction. Access points by construction vehicles shall be provided within the MOT.

1.4.13. The Developer shall provide a Construction Air Quality Management Plan to the Department prior to the start of construction.

1.4.14. A Construction, Demolition and Materials Management Plan (CDMMP) must be submitted by the Developer at time of building permit.

1.4.15. Construction shall only take place Monday through Friday during the hours of 8:00 a.m. and 5:00 p.m. or in accordance with Section 7-16 of the City of South Miami Code of Ordinances, whichever is more restrictive.

Landscaping

1.4.16. The Developer shall meet all of the minimum requirements of the City Code, Chapters 18 and 24 of the Miami-Dade County Code and specifically comply with all conditions imposed by Miami-Dade County Department of Regulatory and Economic Resources - DERM (DRER), if any.

1.4.17. The property shall be landscaped in accordance with the landscape plan, included with the site plan submittal, and approved by the Environmental Review and Preservation Board.

1.4.18. Pursuant to Sec. 20-4.5 and 20-4.5.1, as may be amended, the Developer shall provide mitigation for all trees to be removed in accordance with City requirements.

Environmental

1.4.19. The Developer shall meet the requirements of the Miami-Dade County Water-Use

Efficiency Standards Manual, effective January 2009, as may be amended from time to time.

1.4.20. All storm water drainage systems shall be maintained in working order at all times to avoid localize flooding during and after a storm. Parking shall be prohibited on top of any drainage inlet or drainage manhole.

Architecture

1.4.21. Final approval of all plans must be obtained from the Environmental Review and Preservation Board, as required by Code.

Miscellaneous conditions

1.4.22. Developer shall comply with all requirements set forth in Section 20-8.9 in addition to those set forth in the Resolution approving the Special Exception granting the development of the Project unless there is a conflict, in which event Section 20-8.9 shall take precedent. A copy of the Resolution is attached as **Exhibit C** to this Agreement.

1.4.23 If during the review process it is determined that the development, as proposed, will potentially cause adverse impact, the Planning Department shall recommend remedial measures to eliminate or reduce, to the extent possible, these impacts. Development projects that are recommended for remedial measures will not be required to submit a new application unless it is determined by the Department that additional changes which would have the effect of increasing densities, square footage or altering the height or use of a Development have been made. Remedial measures may include, but are not limited to:

- 1.4.13.1 Additional screening or buffering;
- 1.4.13.2 Additional landscaping;
- 1.4.13.3 Building orientation;
- 1.4.13.4 Relocation of proposed open space, or alteration of the use of such space;
- 1.4.13.5 Pedestrian and bicycle safety and access;
- 1.4.13.6 Changes to ingress and egress;
- 1.4.13.7 Addressing traffic flow to and from the development to avoid intrusion on local streets in nearby single family residential areas; or
- 1.4.13.8 Improvement of the streets adjacent to the project, if applicable.

ARTICLE II.

Section 2.1 Development Plans: Developer and the City acknowledge and agree that the Property shall be developed in substantial conformance with the architectural plans prepared by Behar Font, Architects, entitled "6075 Sunset Drive", and signed and sealed by Robert Behar on 9/20/2017, and the landscaping plans dated 8/8/17 and tree disposition plan dated 10/10/17 both prepared by Witkin Hults Design Group, as the same may be amended, with the approval of the City Commission, from time to time (collectively, the "Regulatory Plans") and the terms and conditions of this Agreement; it being agreed that any amendments to the Regulatory Plans shall comply with the City's process for amending a site plan.

Section 2.2 Uses. The following uses shall be permitted on the Property. No single use in the T.O.D.D. Zone shall exceed a gross floor area of eighty thousand (80,000) square feet, except residential uses (See LDC Section 20-8.9(F)).

2.2.1 The Commercial space, consisting of 3,678 square feet of restaurant and 2,441 square feet of retail uses, will be located on the ground floor of the Sunset Drive façade, and wrap around the corner of the building to also face onto SW 61st Avenue.

2.2.2 A total of 203 residential units shall be located on the upper levels of the building and the ground floor level of the northern portion of the building. The unit mix consists of townhomes, studios, and one, two, and three-bedroom units of varying sizes as follows:

BREAKDOWN OF RESIDENTIAL UNITS			
Unit Type	Number of Units	Average Size (SF)	Unit Mix (%)
1 Bedroom	102	738	50%
2 Bedrooms	72	1,077	35
3 Bedrooms	8	1,433	4
Studio	14	566	7
Townhomes	7	931	3
UNIT TOTAL	203		100

2.2.3 Six of the townhome units shall be located on the ground floor adjacent to SW 71st Street and the seventh adjacent 61st Avenue. These units shall be accessed from both the ground floor parking area and from the right-of-way.

2.2.4 Tenant amenities shall include a dog park, pool deck, and common areas shall be provided on the upper levels of the building.

2.2.5 A total of 303 on-site parking spaces shall be provided to serve the building. Access to the parking garage is obtained via SW 71st Street and parking makes up the second through fifth levels of the northern portion of the building. Ground-level parking and loading areas are accessed via 61st Avenue.

2.2.6 The building shall be a maximum of eight (8) stories in height along Sunset Drive and step down to fifty-two (52) feet along 71st Street.

Section 2.3 Development Schedule. It is currently contemplated by Developer that the Property shall be developed in accordance with the time frames set forth on **Exhibit B** attached hereto.

Section 2.4 Public Open Spaces. All public open spaces indicated on the Regulatory Plans (the "Public Open Spaces") will be open to the public in perpetuity, subject to (a) closures required from time to time for replacement and repair and (b) reasonable limitations on hours of

operation as established by Developer from time to time. The Public Open Spaces will be maintained by Developer at a level of quality equal to or higher than City's standards for municipal public open spaces in effect on the date hereof.

Section 2.5 Parking. Parking shall be provided as set forth above and pursuant to the Regulatory Plans. A minimum of 203 of the on-site parking spaces will be designated for the 203 residential units within the Project. Residential parking decals and parking cards will be issued to residents for the vehicle to be parked in the residential parking area, which shall be segregated from the commercial /visitor parking area by a card only access mechanical gate. A minimum of one decal shall be issued to each residential unit.

ARTICLE III. LAND USES

Section 3.1 Land Uses. Developer and the City agree, for themselves and their successors and assigns, during the term of this Agreement, to devote the Property and Developer Improvements only to the uses specified in this Agreement and to be bound by and comply with all of the provisions and conditions of this Agreement.

Section 3.2 Character and Operation Standards of Property and Developer Improvements. The parties recognize and acknowledge that the manner in which the Project is developed, operated and maintained are matters of critical concern to the City. Therefore, the Developer hereby agrees to develop, operate and maintain the Project and all other property and equipment located thereon which are owned, leased or maintained by Developer in good order, condition, repair and appearance and in a manner and in compliance with all applicable federal, state or local laws, rules, regulations, codes or ordinances. To help accomplish this result, Developer will establish such reasonable rules and regulations governing the use and operation of the Project and by tenants therein as Developer shall deem necessary or desirable in order to assure the level of quality and character of operation of the Project required herein, and Developer will use all reasonable efforts to enforce such rules and regulations. However, nothing contained herein shall be or be deemed to be any contract or agreement by the City, in its municipal capacity, to grant approvals for the Project or with respect to any zoning decisions affecting the Project.

Section 3.3 Failure-Performance of Covenants.

3.3.1 In the event the Developer fails to perform in accordance with or to comply with any of the covenants, conditions and agreements which are to be performed or complied with by the Developer in this Agreement ("a Default") and fails to cure the default within thirty (30) days ("the Cure Period") after receiving written notice of the default or fails to use all due diligence in commencing the cure and in proceeding to effectuate the cure. If the Developer is unable to timely cure the default after receiving written notice, the Owner may request an extension of time from the City Commission which shall be granted ("Extended Cure Period") upon presentation of substantial competent evidence establishing the Owner's good faith and due diligence, justifiable reasons for the delay and the amount of time needed to cure the default. In the event that the Developer fails to cure the default within the Cure Period, or within the Extended Cure Period, whichever is greater, such failure shall constitute an Event of Default and a fine shall be assessed against the owner in the amount of one hundred fifty dollars (\$150.00), or such amount as may be set forth in the City Fee Schedule, for each day the owner remains in default thereafter.

3.3.2 In the event that a fine is assessed against the Developer, or the City incurs any expense towards curing the default, the City shall have the right to file a lien, or a continuing special assessment lien, as may be applicable, against the property and file a lien foreclosure action for the full amount of money incurred by the City for said expense as well as for any fine that has been assessed. The City's lien shall be perfected upon being recorded in the land records in Miami-Dade County, Florida and shall be of equal rank and dignity as the lien of City's ad valorem taxes and superior in rank and dignity to all other liens, encumbrances, titles and claims in, to, or against the land in question, unless in conflict with state statutes or Miami-Dade County code.

3.3.3 The City shall have the right to proceed against the Developer to collect the above-described costs and expenses without resorting to a lien and/or lien foreclosure. The City's remedies shall include all those available in law or in equity, including injunctive relief. The exercise of one available remedy shall not be deemed a waiver of any other available remedy.

Section 3.4 Unavoidable Delay or Force Majeure. Notwithstanding any of the provisions of this Agreement to the contrary, and except as provided herein, neither the City nor Developer, as the case may be, nor any successor in interest, shall be considered in breach of or in default of any of its obligations, including, but not limited to, the preparation of the Property for development, or the beginning and completion of construction of the Developer Improvements or the Offsite Improvements, if any, or progress in respect thereto, in the event of unavoidable delay in the performance of such obligations due to strikes, lockouts, acts of God, unusual delay in obtaining or inability to obtain labor or materials due to governmental restrictions, enemy action, civil commotion, fire, hurricane, sabotage, unavoidable casualty or other similar causes beyond the reasonable control of a party (not including such party's insolvency or financial condition or anything that causes a default in any Project financing or difficulty in obtaining financing), and the applicable time period shall be extended for the period of unavoidable delay; provided, however, with respect to any unavoidable delay that results in any damage to the Developer Improvements or the Offsite Improvements, if any, the time periods shall be extended for the following periods of time: (i) the time period from the date of the event causing the unavoidable delay through and including the date the Developer receives the insurance proceeds related to such damage, and (ii) following receipt of the insurance proceeds, the reasonable time period which is needed for Developer to restore the Developer Improvements or Offsite Improvements, if any, to the condition which existed immediately preceding the event causing the unavoidable delay.

Section 3.5 Obligations, Rights and Remedies Cumulative. The rights, remedies and privileges of the parties to this Agreement, whether provided by law or by this Agreement, shall be cumulative, and the exercise by either party of any one or more of such remedies shall neither be deemed to constitute an election of remedies, nor shall it preclude the party exercising such other additional rights, remedies or privileges, or from exercising at the same or different times, of any other such remedies for the same default or breach, or of any of its remedies for any other default or breach by the other party. No waiver made by either party with respect to performance, or manner or time thereof, of any obligation of the other party or any condition to its own obligation under this Agreement shall be considered a waiver of any rights of the party making the waiver with respect to the particular obligations of the other party or condition to its own obligation beyond those expressly waived in writing and to the extent thereof, or a waiver in any respect in regard to any other rights of the party making the waiver or in regard to any obligation

of the other party. No waiver shall be implied by the acts or omissions of any of the agents, officers, directors or employees of the parties to this Agreement. In the event of a violation of the Development Agreement, in addition to any other remedies available, the City of South Miami is hereby authorized to withhold any future permits and refuse to make any inspections or grant any approval, until such time as the declaration of restrictive covenants in lieu of unity of title are complied with.

Section 3.6 Waiver of Jury Trial. City and Developer knowingly, irrevocably voluntarily and intentionally waive any right either may have to a trial by jury in state or federal court proceedings in respect to any action, proceeding, lawsuit or counterclaim arising out of the this Development Agreement.

ARTICLE IV. RESTRICTIVE COVENANTS.

Section 4.1 Use Prohibitions of the Property and Developer Improvements. The Property shall not be used by Developer nor shall Developer permit the use of same for the following: Any unlawful or illegal business, use or purpose, or for any business, use or purpose which is immoral or disreputable (including without limitation "adult entertainment establishments" and "adult" bookstores) or extra- hazardous, or in such manner as to constitute a nuisance of any kind (public or private), or for any purpose or in any way in violation of the certificates of occupancy (or other similar approvals of applicable governmental authorities) or of rules, regulations, ordinances or laws applicable to the Property.

Section 4.2 No Discrimination.

4.2.1 No covenant, agreement, lease, conveyance or other instrument concerning the sale, lease, use or occupancy of the Property and Developer Improvements or any portion thereof shall be effected or executed by Developer, or any of its successors or assigns, whereby the Property and Developer Improvements or any portion thereof is restricted by Developer, or any successor in interest, upon the basis of race, color, religion, sex, national origin, or handicap. Developer will comply with all applicable state and local laws, in effect from time to time, prohibiting discrimination or segregation by reason of race, color, religion, sex, national origin, or handicap in the sale, lease, use or occupancy of the Property and Developer Improvements or any portion thereof. Furthermore, Developer agrees to make accommodations for the handicapped as required by law and that no otherwise qualified handicapped individual shall, solely by reason of his or her handicap, be excluded from participation in, be denied the benefits of, be denied access to facilities within the Property and Developer Improvements or be subjected to discrimination under any program or activity allowed under this Agreement except as permitted by law.

4.2.2 Anything in Section 3.3 hereof to the contrary notwithstanding, if the City believes that a default has occurred because of a failure by Developer, its successors or assigns or any subsequent owner or occupant (i.e. a tenant under a residential lease or a retail lease) to comply with the terms of this Section 4.2, it may send to Developer and/or occupant a written notice of intent to declare a default because of such failure (the "Pre-Default Notice"). The Pre-Default Notice is not a declaration of a default hereunder. If Developer and/or occupant, after

reviewing the Pre-Default Notice (which shall specify the respects in which the City contends that such a failure should be considered a default), believes that such a failure is not a default under this Section 4.2, Developer and/or occupant, shall within ten (10) days of receipt of such Pre-Default Notice, advise the City of such determination (which shall specify the respects in which Developer and/or occupant contends that such a failure should not be considered a default under this Section 4.2). If the City is not satisfied with the response, then the City may declare an Event of Default under this Agreement.

ARTICLE V. SIGNS

Section 5.5 Regulation. All Project signs shall be subject to the requirements of applicable federal, state, or local rules, orders, regulations, laws, statutes, or ordinances.

ARTICLE VI. PUBLIC OPEN SPACE

Section 6. Events in and Around Public Open Spaces. From time to time, the Developer may sponsor or similarly partner with organizations to hold temporary events in and around the Public Open Spaces. In advance of a temporary event, the Developer shall submit an application to the City consistent with the requirements contained in the City Land Development Code and Code of Ordinances to obtain the necessary permits and approvals.

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ARTICLE VII. MISCELLANEOUS PROVISIONS

Section 7.1 No Partnership or Joint Venture. It is mutually understood and agreed that nothing contained in this Agreement is intended or shall be construed in any manner or under any circumstances whatsoever as creating or establishing the relationship of co-partners, or creating or establishing the relationship of a joint venture between the City and Developer, or as constituting Developer as the agent or representative of the City for any purpose or in any manner whatsoever.

Section 7.2 Recording, Documentary Stamps. A memorandum of this Agreement, in form mutually satisfactory to the parties, may be recorded by either party among the Land Records of Miami-Dade County, State of Florida, and either party may cause any modification or addition to this Agreement to be so recorded, and the cost of any such recordation shall be paid in full by Developer.

Section 7.3 Florida and Local Laws Prevail. This Agreement shall be governed by the laws of the State of Florida. This Agreement is subject to and shall comply with the Charter of the City of South Miami as the same is in existence as of the execution of this Agreement and the ordinances of the City of South Miami; provided, however, future ordinances of the City shall not affect the terms and provisions of this Agreement (i) unless uniformly applicable to property similarly situated with the Property and Developer Improvements; provided, however, to the extent Developer would otherwise be grandfathered or not subject to such ordinances if this Agreement did not exist, Developer shall not be subject to such ordinances or (ii) if the same shall impair the rights of Developer or the obligations of the City hereunder. Subject to the foregoing, any conflicts between this Agreement and the aforementioned Charter and ordinances shall be resolved in favor of the latter. If any term, covenant, or condition of this Agreement or the application thereof to any person or circumstances shall to any extent, be illegal, invalid, or unenforceable because of present or future laws or any rule or regulation of any governmental body or entity or becomes unenforceable because of judicial construction, the remaining terms, covenants and conditions of this Agreement, or application of such term, covenant or condition to persons or circumstances other than those as to which it is held invalid or unenforceable, shall not be affected thereby and each term, covenant, or condition of this Agreement shall be valid and be enforced to the fullest extent permitted by law. Contemporaneously with the execution of this Agreement, the City Attorney shall deliver an opinion to Developer opining that the execution and delivery hereof by the City is in compliance with the Charter and ordinances of the City of South Miami.

Section 7.4 Conflicts of Interest: City Representatives Not Individually Liable. No member, official, representative, or employee of the City or the City Manager shall have any personal interest, direct or indirect, in this Agreement, nor shall any such member, official, representative or employee participate in any decision relating to this Agreement which affects his or her personal interest or the interest of any corporation, partnership or association in which he or she is, directly or indirectly, interested. No member, official, elected representative or employee of the City or the City Manager shall be personally liable to Developer or any successor in interest in the event of any default or breach by the City or the City Manager or for any amount which may become due to Developer or successor or on any obligations under the terms of the Agreement.

Section 7.5 Notice. A notice or communication, under this Agreement by the City, on the one hand, to Developer, or, on the other, by Developer to the City shall be sufficiently given or delivered if dispatched by hand delivery or, by nationally recognized overnight courier providing receipts, or by registered or certified mail, postage prepaid, return receipt requested to:

7.5.1 Developer. In the case of a notice or communication to Developer if addressed as follows:

To: ALTA SUNSET, LLC
2950 S.W. 27th Avenue, Suite 220
Miami, FL 33133

Attn: Henry Pino

cc: Holland & Knight, LLP
701 Brickell Avenue, Suite 3300
Miami, Florida 33131

Attn: Ines Marrero-Priegues, Esq.

7.5.2 City. In the case of a notice or communication to the City, if addressed as follows:

To: City of South Miami, *City Manager TFP*
6130 Sunset Drive
South Miami, Florida 33143
Attn: City Manager

cc: City Attorney
6130 Sunset Drive
South Miami, Florida 33143
Attn: City Attorney.

or if such notice is addressed in such other way in respect to any of the foregoing parties as that party may, from time to time, designate in writing, dispatched as provided in this Section 5.5. It shall be the duty of the parties to advise each other of any change of address and if delivery of a notice or communication is returned as undeliverable or unclaimed, it shall be deemed delivered for all purposes as allowed or required by this Agreement.

Section 7.6 Titles of Articles and Sections. Any titles of the several parts, Articles and Sections of this Agreement are inserted for convenience of reference only and shall be disregarded in construing or interpreting any of its provisions.

Section 7.7 Counterparts. This Agreement is executed, in counterparts, each of which shall be deemed an original, and such counterparts shall constitute one and the same instrument. This Agreement shall become effective only upon execution and delivery of this Agreement by the parties hereto.

Section 7.8 Successors and Assigns. Except to the extent limited elsewhere in this Agreement, all of the covenants conditions and obligations contained in this Agreement shall run with the land and be binding upon and inure to the benefit of the respective successors and assigns of the City and the Developer.

Section 7.9 Entire Agreement. This Agreement and its Exhibits [constitute the sole and only agreement of the parties hereto with respect to the subject matter hereof and correctly set forth the rights, duties, and obligations of each to the other as of its date. Any prior agreements, promises, negotiations, or representations not expressly set forth in this Agreement are of no force or effect and are merged into this Agreement.

Section 7.10 Amendments. No amendments to this Agreement shall be binding on either party unless in writing and signed by both parties. Although this Agreement shall run with the land, amendments, modifications or releases of this Agreement shall be by mutual written agreement between: (a) the City and its successors and assigns (which must be a governmental entity); and (b) Developer or its successors and assigns that are expressly designated in writing as receiving the rights and obligations of Developer under this Agreement ("Express Assigns") (i.e., even if the Property is subdivided and more than one (1) owner exists for the Property, then amendments to this Declaration shall only be required to be executed by the City and Developer or its Express assigns); provided, however, that in the event that any amendment, modification or release of this Agreement materially affects the rights of an owner of a portion of the Property, then any amendment to this Agreement shall also require the consent of such property owner. In the event of a modification of this Declaration or a designation of an Express Assign, a written instrument must be duly executed, acknowledged and recorded in the Public Records of Miami-Dade County, Florida. The parties recognize that the development and operation of the Property and the Developer Improvements may from time to time require the confirmation, clarification, amplification, or elaboration of this Agreement, in order to deal adequately with circumstances which may not now be foreseen or anticipated by the parties. The City and Developer reserve unto themselves and their Express Assigns the right to enter into such interpretive, implementing or confirmatory written agreements from time to time as they mutually deem necessary or desirable, in their sole discretion, for any such purpose without obtaining the consent or approval of any person or entity. If any portion of the Property has been submitted to the condominium form of ownership, and an amendment, modification or release of this Agreement requires the consent of the owner of such portion of the Property as provided above, then only the condominium association thereof shall be required to execute the instrument as to that portion of the Property (in lieu and on behalf of the condominium unit owners thereof).

Section 7.11 Authorization and Approvals by the City. All requests for action or approvals by the City shall be sent to the City Manager for decision, who shall be the party within the City, including the City Commission, that must act or approve the matter on behalf of the City. Without limiting the generality of the foregoing or the general authority of the City Manager, the City Manager shall have the authority himself to grant extensions of time for performance by Developer for up to ninety (90) days (extensions of time in excess of ninety (90) days shall require City Commission approval). If the City Manager's office shall be vacant or if the City Manager shall not have the full authority to act or approve matters required of the City pursuant to this Agreement, then the City Commission shall, promptly upon written request by the Developer, designate such other officer or department as may be appropriate to perform the City's obligations. Unless otherwise specified to the contrary herein, all decisions, approvals and

actions required of the City hereunder must be decided, given or taken within sixty (60) consecutive days after the receipt of written notice requesting same.

Section 7.12 Exculpation. Notwithstanding any provision contained in this Agreement to the contrary, it is specifically agreed and understood that there is no personal liability on the part of any manager, member in the Developer (provided such member is acting within the limitations placed on same by Florida law or has not assumed in writing any greater liability with respect to this Agreement), an equity interest holder of a member in the Developer or, if the Developer is a corporation, of any officer, director or stockholder of the corporate Developer or, if the Developer is a partnership, any limited partner of the Developer, with respect to the performance of any of the obligations, terms, covenants and conditions of this Agreement.

Section 7.13 Caption. The article and section headings and captions of this Agreement and the table of contents preceding this Agreement are for convenience and reference only and in no way define, limit, describe the scope or intent of this Agreement or any part thereof, or in any way affect this Agreement or any part thereof.

Section 7.14. Holidays. It is hereby agreed and declared that whenever a notice or performance under the terms of this Agreement is to be made or given on a Saturday or Sunday or on a legal holiday observed in the City, it shall be postponed to the next" following business day, not a Saturday, Sunday or legal holiday.

Section 7.15. Developer as Independent Contractor. Nothing contained in this Agreement shall be construed or deemed to name, designate, or cause (either directly or implicitly) the Developer, or any contractor of the Developer to be an agent of or in partnership with the City.

Section 7.16. Unlawful Provisions Deemed Stricken. If this Agreement contains any unlawful provisions not an essential part of this Agreement and which shall not appear to have a controlling or material inducement to the making thereof, such provisions shall be deemed of no effect and shall be deemed stricken from this Agreement without affecting the binding force of the remainder. In the event any provision of this Agreement is capable of more than one interpretation, one which would render the provision invalid and one which would render the provision valid, the provision shall be interpreted so as to render it valid.

Section 7.17. No Liability for Approvals and Inspections. Except as may be otherwise expressly provided herein, no approval to be made by the City of the Project site or the Project under this Agreement, shall render the City liable for its failure to discover any defects or nonconformance with any federal, state or local statute, regulation, ordinance or code.

Section 7.18. Radon. Radon is a naturally occurring radioactive gas that, when it has accumulated in a building in sufficient quantities, may present health risks to persons who are exposed to it over time. Levels of radon that exceed federal and state guidelines have been found in buildings in Florida. Additional information regarding radon and radon testing may be obtained from the county public health unit for Dade County.

Section 7.19. Developer Entity. On the date of execution hereof, the Developer is a Florida limited liability company. In the event that at any time during the term of this Agreement and any extensions and renewals thereof, the Developer is a corporation or an entity other than

a Florida limited liability company, then any references herein to member, membership interest, manager and the like which are applicable to a Florida limited liability company shall mean and be changed to the equivalent designation of such term which is appropriate to the nature of the new Developer entity.

Section 7.20. Chapter 400, Florida Statutes. The City acknowledges and agrees that, notwithstanding anything to the contrary set forth in this Agreement, the Developer shall not be required to take any action hereunder which would otherwise constitute a violation of Chapter 400, Florida Statutes, as amended.

Section 7.21. Cooperation; Expedited Permitting; and Time is of the Essence. The Parties agree to cooperate with each other to the full extent practicable pursuant to the terms and conditions of this Agreement. The Parties agree that time is of the essence in all aspects of their respective and mutual responsibilities pursuant to this Agreement. The City shall use its best efforts to expedite the permitting review and approval process in an effort to assist the Developer in meeting its demolition, development, and construction completion schedules. The City will accommodate requests from the Developer's agents, representatives, general contractor(s), and subcontractors for simultaneous review of multiple permitting packages, such as those for site work and foundations, and building shell, core, and interiors. Notwithstanding the foregoing, the City shall not be obligated to issue development permits to the extent the Developer does not comply with the applicable requirements of the City Zoning Code, the Project's zoning approvals, the Comprehensive Plan, this Agreement, applicable building codes, or any other laws, rules, orders, or regulations.

Section 7.22. The Development Agreement, as well as all amendments and revocations thereto, shall comply with F.S. §§ 163.3220—163.3243, as amended by the Florida Legislature.

Section 7.23. Severability. Invalidation of any part of this Development Agreement by judgment of a court of competent jurisdiction shall not affect any of the other provisions, which shall remain in full force and effect.

Section 7.24. The duration of the development agreement shall be 30 years, unless it is extended by mutual consent of the governing body and the developer, subject to a public hearing in accordance with s. 163.3225.

Section 7.25. The failure of the agreement to address a particular permit, condition, term, or restriction shall not relieve the developer of the necessity of complying with the law governing said permitting requirements, conditions, term, or restriction.

Section 7.26. This Development Agreement shall be void if not recorded within 14 days of the resolution approving its execution.

[SIGNATURE PAGE TO FOLLOW]

WITNESSES(S):

By: Christian Arrabal
Print Name: Christian Arrabal
By: Jose Manuel Poblete
Print Name: Jose Manuel Poblete

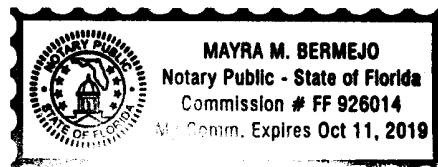
ALTA SUNSET, LLC, a Florida limited liability company

By: Henry Pino
Print Name: Henry Pino

STATE OF FLORIDA)
) ss:
COUNTY OF MIAMI-DADE)

The foregoing instrument was acknowledged before me this 6th day of September, 2018 by Henry Pino & Raimundo Ojeda as Members of ALTA SUNSET, LLC, a Florida limited liability company. He personally appeared before me, is ☒ personally known to me or ☐ produced _____ as identification.

Name: _____
Notary Public, State of Florida
Commission No. _____
My commission expires: _____



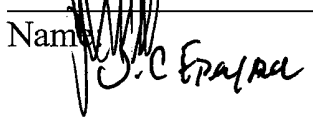
JOINDER AND CONSENT TO DEVELOPMENT AGREEMENT

Sunset-Miami Investments Inc., a Florida for profit corporation, as owner ("Owner") of the property legally described in Exhibit "A" ("Property"), hereby agrees, joins and consents to this Development Agreement between ALTA SUNSET, LLC, a Florida Limited Liability Company and the City of South Miami, a Florida Municipal Corporation (the "Development Agreement"),.

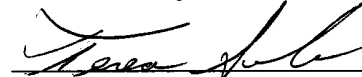
WITNESSETH:

OWNER:


Name: G.T. QUESADA

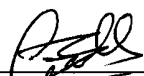

Name: J.C. ESPARZA

SUNSET-MIAMI INVESTMENTS, INC
A FLA. CORP

By: 
Teresa Sordo, President

STATE OF FLORIDA)
)
COUNTY OF MIAMI-DADE)

The foregoing instrument was acknowledged before me this 31st day of AUGUST, 2018, by Teresa Sordo, in her capacity of President of Sunset-Miami Investments, Inc. a Florida for profit corporation, who is personally known to me or has/has not produced DRIVER LICENSE S 633-800-54-602-0 as identification and did/did not take an oath.

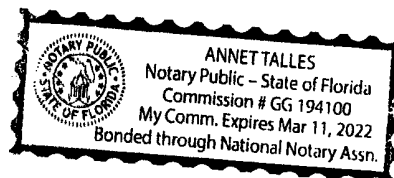


Notary Public

66194100

Serial Number

ANNET TALLES
Name: _____



ATTESTED:

By: Nkenga A. Payne
Nkenga A. Payne, CMC
City Clerk

CITY OF SOUTH MIAMI

By: Steven Alexander
Steven Alexander
City Manager

Read and Approved as to Form, Language,
Legality and Execution Thereof:

By: [Signature]
City Attorney
*Including Initialed Changes to page 11, 13
and Exhibit D.*

STATE OF FLORIDA
COUNTY OF MIAMI-DADE

The foregoing instrument was acknowledged before me this 13 day of September 2018 by Steven Alexander and , who are personally known to me and acknowledge executing the same freely and voluntarily under authority vested in them by the City of South Miami.

(NOTARY SEAL)

[Signature]
Signature of Notary
MARIA L. GARCIA
Print or type name

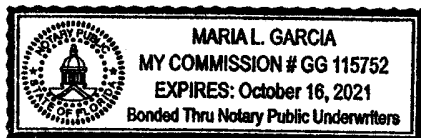


EXHIBIT "A"

Legal Description

All of Tract A, less the East 118 feet of the North 129.07 feet, in Block 1, and Lot 3, in Block 1 of Rosswood, according to the Plat thereof, recorded in Plat Book 13, at Page 62 of the Public Records of Miami Dade County, Florida, less the South 25 feet of said Block 1. FOLIO: 09-4025-011-0010; PROP. ADDR:6075 Sunset Dr, South Miami, Florida

Tax Folio Number 09-4025-011-0010

Owners: Sunset-Miami Investment, Inc.
1313 Ponce De Leon Blvd. Ste. 200
Coral Gables, Fl 33134

EXHIBIT "B"
RESOLUTION 074-18-15107

RESOLUTION NO. 074-18-15107

A Resolution approving a Special Exception so as to allow a project within the TODD (MU-5) of more than four (4) stories and more than 40,000 square feet for the property located at 6075 SW 72nd Street.

WHEREAS, the applicant, Alta Developers, LLC, submitted an application (number PB-17-033) requesting a Special Exception approval for a Large Scale Development for a mixed-use building located at 6075 SW 72nd Street; and

WHEREAS, the applicant has submitted concurrent requests to change the zoning of the northern portion of the site from TODD (MU-4) to TODD (MU-5) and for a Variance to reduce the number of required parking spaces; and

WHEREAS, the site consists of 1.611 acres and the proposed development will provide 203 residential units, 2,441 square feet of commercial space, and 3,678 square feet of restaurant; and

WHEREAS, pursuant to Land Development Code (LDC) Section 20-8.9 Special exceptions, any site that is in excess of 40,000 square feet or any development in excess of four (4) stories, shall be designated as a Large Scale Development and reviewed by the Planning Board and shall require approval by the City Commission; and

WHEREAS, at its December 12, 2017 meeting, the Planning Board held a public hearing on the application, considered each of the requirements and conditions for Large Scale Development listed in Section 20-8.9 of the LDC, and voted four (4) to two (2) to recommend approval of the requested Special Exception; and

WHEREAS, Section 20-8.9 (C) requires that all uses in a large scale development must comply with the following general requirements and any other requirements that the City Commission may consider appropriate and necessary.

- 1. All such uses shall comply with all requirements established in the appropriate zoning use district, unless additional or more restrictive requirements are set forth below or by the City Commission.**
- 2. All such uses must be of a compatible and complementary nature with any existing or planned surrounding uses.**
- 3. The City Commission shall determine the overall compatibility of the development with the existing or planned surrounding uses.**

WHEREAS, Section 20-8.9 (C) requires that the development will:

- 1. Not adversely affect the health or safety of persons residing or working in the vicinity of the proposed use;**
 - 2. Not be detrimental to the public welfare, property or improvements in the neighborhood;**
- and**
- 3. Complies with all other applicable Code provisions.**

WHEREAS, the Mayor and City Commission of the City of South Miami, having considered each of the Special Exception requirements and conditions and having found that those conditions have been met, desire to approve the application for the Special Exception.

NOW, THEREFORE, BE IT RESOLVED BY THE MAYOR AND CITY COMMISSION OF THE CITY OF SOUTH MIAMI, FLORIDA:

Section 1: The recitals set forth in this resolution are true and they are supported by competent substantial evidence and they are incorporated into this resolution by reference as if set forth in full herein.

Section 2. The application (number PB-17-033) submitted by Alta Developers, LLC, requesting a Special Exception for a Large Scale Development for a mixed-use building consisting of commercial, restaurant and residential uses within the TODD (MU-5) zoning district located at 6075 SW 72nd Street, South Miami, Florida, complies with the requirements of 20-8.9 (C) and (D) and is hereby approved with the following conditions:

General Conditions

1. Any development of the property will be in substantial compliance with the documents submitted, including: Letter of Intent from Ines Marrero-Priegues dated August 11, 2017; Application Book consisting of a survey prepared by Fortun, Leavy, Skiles, Inc. dated 7/27/17; Site Photographs (Sheet CP-1.0); Renderings dated 11/14/17 (Sheets R-1.0 through R-1.5); Aerial Photos of the site (Sheet CP-2.0); a Zoning Chart dated 8/11/17 (Sheet A-0.1); an Area Schedule dated 9/20/17 (Sheet A-1.00); Floor and Roof Plans (Sheets A-1.01 through 1.07); building elevations (Sheets A-2.01 and A-2.02); a building section drawing (Sheet A-3.01); and Planter Details (Sheet A-4.0) all signed and sealed by Roberto Behar (9-20-17); and a Tree Disposition Plan dated 10/10/17 (Sheet TD-1) and landscape plans (Sheets L-1 through L-4) dated 8/8/17 prepared by Witkin Hults Design Group; and a Traffic Impact Study and Parking Study both prepared by Richard Garcia & Associates.
2. All documents submitted with this application are to be made part of the record.
3. Any improvements in the Public Right-of-Way shall be approved by the applicable agency (FDOT, Miami-Dade County and/or City of South Miami).
4. All impact fees shall be paid prior to issuance of building permit.
5. The Applicant shall provide a letter acknowledging compliance with the applicable Level of Services requirements prior to the issuance of final permit to the property. If any concurrency approvals expire a re-review shall be required by the appropriate agency.
6. Any changes that increase densities, intensities or population shall require a new Concurrency Analysis.
7. Applicant shall submit verification from Miami-Dade County that the proposed new development has been reviewed and approved for all access management considerations prior to site plan approval.
8. Flood elevations shall be reviewed and approved for consistency with FEMA requirements and the City's National Insurance Flood Program Ordinance prior to building permit approval.
9. The Applicant shall comply with applicable conditions and requirements by Miami-Dade County Public Works Department, Fire Rescue Department, Department of Regulatory and Economics Resources - DERM (DRER), Miami-Dade County Water and Sewer Department, and FDOT.

10. The Applicant shall execute and record in the public records of Miami-Dade County, a Development Agreement and a Maintenance Covenant, in a form approved by the City Commission and City Attorney, which complies with the requirements of Land Development Code Section 20-8.9 and which contains all commitments made and conditions imposed as part of the approval of the Applications. The development agreement shall be enforceable for ten (10) years from the date of substantial completion as defined in Section 20-8.9.
11. Applicant shall comply with all requirements set forth in Section 20-8.9 in addition to those set forth in this Resolution unless there is a conflict, in which event Section 20-8.9 shall take precedent.
12. If during the review process it is determined that the development, as proposed, will potentially cause adverse impact, the Planning Department shall recommend remedial measures to eliminate or reduce, to the extent possible, these impacts. Development projects that are recommended for remedial measures will not be required to submit a new application unless it is determined by the Department that additional changes which would have the effect of increasing densities, square footage or altering the height or use of a Development have been made. Remedial measures may include, but are not limited to:
 - i. Additional screening or buffering;
 - ii. Additional landscaping;
 - iii. Building orientation;
 - iv. Relocation of proposed open space, or alteration of the use of such space;
 - v. Pedestrian and bicycle safety and access;
 - vi. Changes to ingress and egress;
 - vii. Addressing traffic flow to and from the development to avoid intrusion on local streets in nearby single family residential areas; or
 - viii. Improvement of the streets adjacent to the project, if applicable.

Construction General Conditions

13. A Construction and Maintenance of Traffic (MOT) Plan shall be provided by the Applicant to the Public Works Departments for approval prior to start of construction. Access points by construction vehicles shall be provided within the MOT.
14. The Applicant shall provide a Construction Air Quality Management Plan to the Department prior to the start of construction.
15. A Construction, Demolition and Materials Management Plan (CDMMP) must be submitted by the Applicant at time of building permit.
16. Construction shall only take place Monday through Friday during the hours of 8:00 a.m. and 5:00 p.m.

Parking Conditions

A parking adjustment has been approved, permitting a total of 303 on-site parking spaces. A minimum of 203 of the on-site spaces will be designated for the 203 residential units within the project (to be assigned in the lease agreements). Residential parking decals and parking cards will be issued to tenants for the vehicle to be parked in the residential parking area, which shall be segregated from the commercial/visitor parking area by a card-only access mechanical gate. A minimum of one decal shall be issued to each rental unit. Tenant vehicles that are found parked in this commercial/visitor parking area shall be towed, and towing shall be conducted by an authorized towing company to a towing company storage facility in accordance with Florida law.

Landscaping

17. The Applicant shall meet all of the minimum requirements of the City Code, Chapters 18 and 24 of the Miami-Dade County Code and specifically comply with all conditions imposed by Miami-Dade County Department of Regulatory and Economic Resources - DERM (DRER), if any.
18. The property shall be landscaped in accordance with the landscape plan, included with the site plan submittal, and approved by the Environmental Review and Preservation Board.
19. Pursuant to Sec. 20-4.5 and 20-4.5.1, as may be amended, the Applicant shall provide mitigation for all trees to be removed in accordance with City requirements.

Environmental

20. The Applicant shall meet the requirements of the Miami-Dade County Water-Use Efficiency Standards Manual, effective January 2009, as may be amended from time to time.
21. All storm water drainage systems shall be maintained in working order at all times to avoid localize flooding during and after a storm. Parking shall be prohibited on top of any drainage inlet or drainage manhole.

Architecture

22. Final approval of all plans must be obtained from the Environmental Review and Preservation Board, as required by Code.

Section 3. Severability. If any section clause, sentence, or phrase of this resolution is for any reason held invalid or unconstitutional by a court of competent jurisdiction, the holding shall not affect the validity of the remaining portions of this resolution.

Section 4. Effective Date. This resolution shall become effective immediately upon adoption by vote of the City Commission.

PASSED AND ADOPTED this 3rd day of, April, 2018.

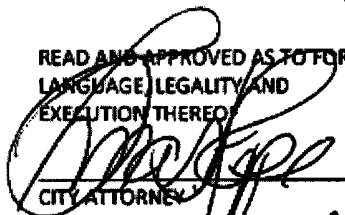
ATTEST:


CITY CLERK

APPROVED:


MAYOR

READ AND APPROVED AS TO FORM,
LANGUAGE, LEGALITY AND
EXECUTION THEREOF


CITY ATTORNEY

COMMISSION VOTE:	5-0
Mayor Stoddard:	Yea
Vice Mayor Harris:	Yea
Commissioner Gil:	Yea
Commissioner Liebman:	Yea
Commissioner Welsh:	Yea

Add Parking Condition

EXHIBIT "C"

DEVELOPMENT **SCHEDULE**

All time periods provided below are from the date of final City Commission approval of the Development Agreement or approval of a revised development programs and/or site plans or as provided by the City's Land Development Code, whichever is the shorter period of time.

Submittal of Building Permit Plans	6 Months
Approval of Building Permit Plans / Issuance of Building Permit (including issuance of foundation permit, site work permit, or partial permit)	12 Months
Commencement of Construction	18 Months
Complete Project Buildout	24 Months

EXHIBIT "D"

PERMITS

All local development permits approved or needed to be approved for the development in accordance with this Development Agreement are as follows:

1. Demolition Permit from City of South Miami;
2. Project Plan and Site Plan approvals from the City's Environmental Review & Preservation Board ("ERPB");
3. Subdivision plat and/or waiver of plat approvals (if needed);
4. Water, sewer, paving and drainage and other infrastructure permits;
5. Covenant in Lieu of Unity of Title or Unity of Title acceptance or the release of existing unities or covenants;
6. Building permits; *See also the attached "Building Submittal Requirements" ¹ 11?*
7. Certificates of occupancy;
8. Environmental Permits; and
9. Any other official action of the City and/or Miami-Dade County, Florida, having the effect of permitting the development of land.



Building Submittal Requirements

City of South Building Department

6130 Sunset Drive, South Miami FL, 33143

Tel (305)663-6355- Fax (305)666-4591- www.southmiamifl.gov

New commercial buildings

Plans must be approved by FIRE, DERM, HRS(IF APPLICABLE), WASA and IMPACT FEE

2 copies of signed and sealed drawings.

2 copies of property survey.

2 copies of structural calculations

New residential homes

Plans must be approved by DERM, HRS(IF APPLICABLE), WASA and IMPACT FEE

2 copies of signed and sealed drawings.

2 copies of property survey.

2 copies of structural calculations

Commercial additions and remodel

Plans must be approved by Fire, DERM and impact fee.

2 copies of signed and sealed drawings.

2 copies of property survey.

2 copies of structural calculations (IF PLANS CALL FORM THEM).

Residential additions and remodel

2 copies of signed and sealed drawings.

2 copies of property survey.

2 copies of structural calculations (IF PLANS CALL FOR THEM).

DERM, HRS (if applicable), IMPACT FEE stamp.

Windows, Doors, Shutters and Garage doors

2 copies of N.O.A (Also know as product approval)

2 copies of sketch of the house showing the locations of the windows or doors being replaced.

2 signed and sealed wind load calculations. (GENERIC TABLE WITH DIFFERENT WINDLOAD SCENARIOS WILL SUFFICE).

Fence

2 copies of the property survey and highlight the location of the fence.

2 copies of the fence detail (TYPE,HOLES, ETC.).

TFP

Driveways, walkways, resurfacing

2 copies of the property survey and highlight the location of the work.

2 copies of the details (INCHES OF SAND, LIMEROCK, ETC.).

*For commercial sites, you must show parking spaces and handicap spaces.

*If you are doing the approach you must pull a permit with Public Works as well.

Sheds

2 copies of State product approval of shed.

2 copies of survey showing where the shed is to be located and mark how far from the setback

Demolition of single family home/commercial building

2 copies of survey of property

FPL disconnect letter

Letter from mechanical company stating there isn't any refrigerant in lines. (ONLY FOR CENRAL A/C)

DERM approval (ONLY FOR COMMERCIAL DEMO)

*Separate permits for sewer cap, septic tank abandonment and temporary fence required as well.

Roofing

2 copies of roofing packet

DERM approval (ONLY FOR COMMERCIAL)

Swimming pools

2 copies of survey

2 set of drawings of pool

HRS approval (ONLY IF PROPERTY HAS SEPTIC TANK)

Generator

Must have applied and been approved by the Planning & Zoning Department

2 copies of survey

2 set of drawings of generator

DERM & Fire (ONLY FOR COMMERCIAL)

Wood Decks

2 copies of surveys showing the location of where the deck will be going

2 set of drawings showing details of how deck is being built.

Signs

2 copies of detail of signs (SIGN MAY REQUIRE PLANNING BOARD APPROVAL)

Awnings

2 copies of shop drawing of awnings (AWNING MAY REQUIRE PLANNING BOARD APPROVAL)

TKP